

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sally Lynn Edmonds	Team: Squad #07	CCRB Case #: 201705235	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Wednesday, 06/21/2017 8:05 PM	Location of Incident: Train station at Nostrand Avenue and Eastern Parkway	18 Mo. SOL 12/21/2018	Precinct: 77
Date/Time CV Reported Wed, 06/21/2017 10:25 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 06/27/2017 2:25 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Eliseo Torres	29629	951343	TB BKTF

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Dario Estevez	15122	954780	TB BKTF
2. POM Brian Albert	26867	949979	TB BKTF

Officer(s)	Allegation	Investigator Recommendation
A . POM Eliseo Torres	Abuse: Police Officer Eliseo Torres stopped § 87(2)(b)	A . Exonerated
B . POM Eliseo Torres	Abuse: Police Officer Eliseo Torres threatened to arrest § 87(2)(b)	B . Exonerated
C . POM Eliseo Torres	Off. Language: Police Officer Eliseo Torres made remarks to § 87(2)(b) based upon the perceived mental disability of § 87(2)(b)	C . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

§ 87(2)(b) filed this complaint with the Internal Affairs Bureau on June 21, 2017, via phone, and the case was received at the CCRB on June 27, 2017 (Board Review 01).

On June 21, 2017, at approximately 8:05 p.m., § 87(2)(b) was riding the No. 3 train from Brooklyn to Manhattan. § 87(2)(b) was singing along to his headphones and every time the train would stop he would exit the train and enter the train car in front of his. When § 87(2)(b) got off the train at the Nostrand Avenue stop, Police Officer Eliseo Torres, Police Officer Dario Estevez and Police Officer Brian Albert, all of Transit Borough Brooklyn Task Force, followed him off the train. § 87(2)(b) got back on the train, but PO Torres told him to step off the train (**Allegation A**). When § 87(2)(b) asked why, PO Torres allegedly said, “Step off the train or I am going to arrest you” (**Allegation B**). PO Torres then had a conversation with § 87(2)(b) in which he allegedly told § 87(2)(b) “Whatever medication you are on, you need to take that” (**Allegation C**). At the conclusion of their conversation, § 87(2)(b) boarded the next Manhattan-bound train. He was not issued a summons or arrested.

There was no video footage of this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- On September 7, 2017, the New York City Comptroller’s Office notified the CCRB that § 87(2)(b) had not filed a Notice of Claim regarding this incident (Board Review 04).

Civilian and Officer CCRB Histories

- § 87(2)(b) currently has one additional open complaint with the CCRB § 87(2)(b)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- PO Torres has been a member of the NYPD for six years and has been the subject of four prior allegations, stemming from one complaint. None of the allegations were substantiated § 87(2)(g)

Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)

Allegation A – Abuse of Authority: Police Officer Eliseo Torres stopped § 87(2)(b)

Allegation B – Abuse of Authority: Police Officer Eliseo Torres threatened to arrest § 87(2)(b)

§ 87(2)(b) filed this complaint with IAB on June 21, 2017 (Board Review 01). He provided a phone statement to the CCRB on June 30, 2017, and a sworn statement to the CCRB on July 27, 2017 (Board Review 06; 07).

§ 87(2)(b) stated that he was singing along to his headphones as he was riding the train. He was singing at a volume that was a little louder than conversational tone and he was not using any profanity. He switched train cars each time the train stopped, because he needed to be at the front of the train by the time he arrived at his destination. Between stops, § 87(2)(b) would make his way from the back of the train car to the front of the train car. § 87(2)(b) noticed people looking at a group of officers, but he did not notice anyone looking at him or showing signs that they were disturbed by his singing. Nobody spoke to § 87(2)(b) and nobody moved toward him or away from him. There were about twenty-five people in the car. When they arrived at the Nostrand Avenue stop, § 87(2)(b) got off the train car and proceeded to get onto the train car ahead of his. All three officers got off the train and then stood on the platform. PO Torres ordered § 87(2)(b) to step off the train. When § 87(2)(b) asked why, PO Torres said “Step off the train or I am going to arrest you.” § 87(2)(b) then complied and stepped off the train. PO Torres spoke to § 87(2)(b) for 10 to 15 minutes, during which time he told him that he was causing a disturbance. PO Torres instructed § 87(2)(b) to keep the volume down, and to take his medication. § 87(2)(b) was not arrested or issued any summonses, and at the conclusion of the incident he boarded the next Manhattan-bound train.

PO Torres stated that he was riding the No. 3 train with his partners PO Estevez and PO Albert when § 87(2)(b) entered the train car at the Kingston Avenue stop (Board Review 08). § 87(2)(b) walked from the back end of the train car toward the front, and as he passed the officers he shouted in a loud voice “You don’t know who you are fucking with” and “I’m taking your fucking gun and shield.” None of the officers spoke with § 87(2)(b) before he started making these comments. Everyone on the train was looking at the officers to see how they would respond to these verbal threats. Aside from pacing, § 87(2)(b)’s body language was normal and he did not give the impression that he was a threat to anybody’s safety. § 87(2)(b) was wearing headphones but PO Torres did not recall him singing. PO Torres believed § 87(2)(b) was behaving in a way that indicated he was emotionally unstable. He told his partners that he was going to talk to § 87(2)(b) at the next stop, and his partners said, “Okay.” When they reached the Nostrand Avenue stop, PO Torres told the conductor to hold the train. He then asked § 87(2)(b) to step off the train. The first time that PO Torres asked § 87(2)(b) to get off the train, § 87(2)(b) refused. PO Torres asked him again, and he complied. He never threatened to arrest § 87(2)(b) if he did not get off the train. PO Torres asked § 87(2)(b) for his ID, which he

provided. PO Torres asked § 87(2)(b) if he needed medical attention. PO Torres maintained that his stop of § 87(2)(b) was not based on a suspicion of criminality, but rather to ensure that § 87(2)(b) did not need medical attention for his apparent psychiatric issues. He stated that he asked for § 87(2)(b)'s ID in case he needed to call an ambulance for him. Only PO Torres spoke to § 87(2)(b). PO Estevez and PO Albert were standing three to four feet away during their conversation. At the end of their conversation, § 87(2)(b) got onto the next Manhattan-bound train. PO Torres did not threaten to arrest § 87(2)(b) for refusing to get off the train or for any other reason.

PO Estevez stated that as soon as he saw the officers, § 87(2)(b) began shouting, "I am IAB, I'll take your gun, I'll take your shield," and continued shouting this throughout the train ride (Board Review 09). About six or seven people who were seated near § 87(2)(b) moved away from him, and other passengers were staring at § 87(2)(b) and the officers. When § 87(2)(b) walked by the officers, he stopped in front of them and said "Yo, I'll take your gun, I'll take your shield," while pointing at the officers' guns and shields. § 87(2)(b) was not wearing headphones and he was not singing. PO Torres told PO Estevez that he believed § 87(2)(b) was emotionally disturbed. When the train stopped at Nostrand Avenue, PO Torres said to § 87(2)(b) "Sir, can you please get off the train." § 87(2)(b) immediately complied. PO Torres informed PO Estevez after the stop that the purpose of the stop was to ask if § 87(2)(b) was okay and to see if he needed an ambulance. PO Estevez stated that it is standard procedure to ask for identification in this situation. PO Torres did not threaten to arrest § 87(2)(b) if he did not get off the train.

PO Albert stated that upon boarding the train, § 87(2)(b) was yelling and cursing (Board Review 10). § 87(2)(b) was not yelling at anyone in particular. PO Albert did not remember the general content of what § 87(2)(b) was saying or the specific curse words he used. § 87(2)(b) was also waving his hands. Some of the passengers looked scared, including one woman who had an uncomfortable expression on her face and was looking at the officers. PO Albert did not recall any of the passengers getting up and moving away from § 87(2)(b). None of the passengers made any complaints about § 87(2)(b). PO Albert did not hear PO Torres threaten to arrest § 87(2)(b).

A person on the subway is guilty of disorderly conduct if they conduct themselves in a manner which may cause or tend to cause annoyance, alarm or inconvenience to a reasonable person or create a breach of the peace, New York City Transit Authority Rules of Conduct, Section 1050.7 (Board Review 02).

Officers may arrest an individual when they have probable cause to believe that person has committed a crime or offense in their presence, People v. De Bour, 40 NY2d 2010 (Board Review 11).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A** and **B** be closed as **Exonerated**.

Allegation C – Offensive Language: Police Officer Eliseo Torres made remarks to § 87(2)(b) based upon the perceived mental disability of § 87(2)(b)

§ 87(2)(b) stated that during the stop, PO Torres told him that he was causing a disturbance and that he needed to calm down (Board Review 07). PO Torres also told § 87(2)(b) “You need to take your medication.” When § 87(2)(b) asked him to clarify what he meant, PO Torres said, “Whatever medication you are on, you need to take that.” § 87(2)(b) had never told PO Torres that he was taking medication. § 87(2)(b) interpreted the comment as a derogatory remark based upon his perceived mental disability.

As noted above, PO Torres stated that he stopped § 87(2)(b) to determine if he needed medical attention (Board Review 08). He asked § 87(2)(b) if he needed medical attention, and § 87(2)(b) replied that he did not. PO Torres then asked § 87(2)(b) if he took medication, to which § 87(2)(b) replied that he did. PO Torres also asked § 87(2)(b) if he was currently taking his medication and § 87(2)(b) stated that he was not because he did not like the way that it made him feel. PO Torres did not ask § 87(2)(b) what the medication was for or the name of the medication. PO Torres did not say “Whatever medication you’re on, you need to take that” or “You need to take your medication.” PO Torres asked about his medication in case he called an ambulance and he needed to inform the EMTs of this information. PO Torres explained to § 87(2)(b) that he pulled him off the train because his behavior was alarming other people. He asked § 87(2)(b) a second time if he wanted an ambulance and § 87(2)(b) declined again. He did not make any derogatory comments regarding § 87(2)(b)’s mental health status. Before the end of the conversation, PO Torres asked § 87(2)(b) if he would stay calm if he got back on the train. § 87(2)(b) stated that he would. PO Torres asked § 87(2)(b) a third time if he wanted medical attention, and § 87(2)(b) declined a third time.

PO Estevez and PO Albert both also stated that PO Torres stopped § 87(2)(b) to determine whether he needed medical assistance (Board Review 09; 10). PO Albert, who stated that he was standing 20 to 25 feet away, heard § 87(2)(b) say something about being off his medication, though he did not hear PO Torres ask § 87(2)(b) about his medications. PO Estevez, who stated he was standing about 40 feet away, did not hear any conversation about medication. Neither officer heard PO Torres say “Whatever medication you are on, you should take it,” or make an offensive remark about § 87(2)(b)’s perceived mental disability. Both officers remarked that they observed § 87(2)(b)’s body language and demeanor to be friendly, or at least cordial, by the end of his interaction with PO Torres.

Police are prohibited from making discourteous or disrespectful remarks regarding a civilian’s disability, NYPD Patrol Guide, Section 203-10 (Board Review 12).

§ 87(2)(g)

§ 87(2)(g) [Redacted]
[Redacted]
§ 87(2)(g) [Redacted]
[Redacted]
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Therefore, it is recommended that **Allegation C** be closed as **Unsubstantiated**.

§ 87(4-b), § 87(2)(g) [Redacted]
[Redacted]
[Redacted]
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[Redacted]

Squad: 07

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date